

STATE OF NEW YORK

7532--C

2025-2026 Regular Sessions

IN SENATE

April 22, 2025

Introduced by Sens. HARCKHAM, KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to enacting the restriction of anticoagulant pesticide transactions for online and retail stores act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "restriction of anticoagulant pesticide transactions for online and
3 retail stores act" or "RAPTORS act".
4 § 2. Legislative intent. The legislature hereby finds and declares
5 that it is the policy of this state to ensure that aquatic, terrestrial,
6 and avian wildlife species remain a fully functional component of the
7 ecosystems they inhabit and move through in New York. It is the intent
8 of this act to facilitate this goal by prohibiting the general public
9 from purchasing and utilizing the world's deadliest rodenticides, which,
10 when misapplied or improperly used, can cause significant unintended
11 harm to non-target wildlife and the ecosystem.
12 This legislation also comes in the wake of Flaco's passing. Flaco, the
13 Eurasian eagle-owl whose escape from the Central Park Zoo and life on
14 the loose captivated New York, had been exposed at the time of his death
15 to four of the seven pesticides this bill restricts. The legislature
16 takes this action to protect all non-target species, not only raptors
17 such as eagles, hawks, and owls, but also the thousands of children and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11733-09-6

1 pets exposed to anticoagulants that poison control centers receive calls
2 for each year.

3 § 3. Section 33-1301 of the environmental conservation law is amended
4 by adding a new subdivision 14 to read as follows:

5 14. a. Except as provided in paragraph b of this subdivision, no
6 person, business, or entity shall sell, offer for sale, distribute, or
7 use any pesticide containing first-generation anticoagulant rodenticides
8 (FGARs) or second-generation anticoagulant rodenticides (SGARs) within
9 the state. This prohibition applies to all forms of sale, including but
10 not limited to retail establishments, agricultural suppliers, and online
11 or digital marketplaces serving customers located in the state unless
12 such a purchaser or user has a valid purchase permit or certification
13 identification card pursuant to section 33-0903 of this article.

14 b. (1) The prohibitions set forth in paragraph a of this subdivision
15 shall not apply where a public safety risk, a risk to critical infras-
16 tructure, or specific agricultural circumstances exist, as described in
17 paragraph c of this subdivision.

18 (2) The commissioner, in consultation with the commissioner of health
19 and the commissioner of agriculture and markets, shall promulgate regu-
20 lations to govern the exceptions pursuant to this paragraph and para-
21 graph c of this subdivision. Such regulations shall require that alter-
22 native pest control methods are exhausted prior to the use of FGARs or
23 SGARs and shall prohibit any application within five hundred feet of a
24 designated wildlife habitat area.

25 c. The prohibitions in paragraph a of this subdivision shall not apply
26 to the use of FGARs or SGARs by pesticide applicators certified pursuant
27 to section 33-0905 of this article, and commercial pesticide techni-
28 cians, or commercial pesticide apprentices acting under the instructions
29 and control of a pesticide applicator certified pursuant to section
30 33-0905 of this article, who is available if and when needed, even
31 though such certified pesticide applicator is not physically present at
32 the time and place the pesticide is applied for an agricultural activ-
33 ity, defined in section three hundred one of the agriculture and markets
34 law, when conducted in any of the following locations:

35 (1) Warehouses used for the storage of foods intended for human or
36 animal consumption;

37 (2) Agricultural food, beverage and condiment processing and
38 production sites;

39 (3) Agricultural production sites housing water storage and conveyance
40 facilities; or

41 (4) Agricultural production sites housing rights-of-way and other
42 transportation infrastructure.

43 d. For the purposes of this subdivision the following terms shall have
44 the following meanings:

45 (1) "First-generation anticoagulant rodenticide" or "FGAR" means any
46 pesticide product containing any of the following active ingredients:

47 (i) Diphacinone.

48 (ii) Warfarin.

49 (iii) Chlorophacinone.

50 (2) "Second-generation anticoagulant rodenticide" or "SGAR" means any
51 pesticide product containing any of the following active ingredients:

52 (i) Brodifacoum.

53 (ii) Bromadiolone.

54 (iii) Difenacoum.

55 (iv) Difethialone.

1 (3) "Wildlife habitat area" means any park, conservation area, wetland
2 buffer zone, nature preserve, or wildlife refuge.

3 (4) "Alternative pest control methods" means non-chemical control
4 measures, including but not limited to habitat modification, exclusion,
5 and sanitation, as well as physical control measures such as snap traps,
6 zap traps, live traps, repellants, owl boxes, and rodent birth control.

7 § 4. This act shall take effect one year after it shall have become a
8 law. Effective immediately, the addition, amendment and/or repeal of any
9 rule or regulation necessary for the implementation of this act on its
10 effective date are authorized to be made and completed on or before such
11 effective date.